

SENATE No. 1257

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to crimes relating to distribution of controlled substances causing death.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>1/27/2025</i>
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>3/17/2025</i>

SENATE No. 1257

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 1257) of Bruce E. Tarr and Steven George Xiarhos for legislation relative to crimes relating to distribution of controlled substances causing death. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1124 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to crimes relating to distribution of controlled substances causing death.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 94C of the General Laws is hereby amended by inserting after section 32N the
2 following section:-

3 Section 32O. (a) A person who, while in the course of trafficking or unlawfully
4 distributing a controlled substance as defined in section 32E, knowingly or intentionally
5 manufactures, distributes, dispenses, delivers, gives away, barter, administers or provides any
6 amount of a controlled substance or counterfeit substance which results in death shall be
7 punished as murder in the second degree as defined by section 1 of chapter 265.

8 (b) Lack of knowledge of a previous health condition shall not be a defense to a violation
9 of this section.